

Equatorial Guinea: Protect Deported Migrants and Lawyers Facing Threats and Intimidation

Malabo/Nairobi/Arusha/Banjul/Washington, D.C./Atlanta, August 12, 2026 – The Government of Equatorial Guinea is subjecting third-country nationals deported from the United States to arbitrary detention, physical abuse, and inadequate medical care, while lawyers attempting to visit and represent them face intimidation and threats of arrest, five human rights organizations said today.

Since November 2025, close to fifty (50) individuals deported from the United States by US Immigration and Customs Enforcement (ICE) have arrived in Malabo. Approximately twenty-five (25) remain in the country, including six women. The most recent group of eight men and two women arrived on July 29, 2026. Those affected include nationals of Ethiopia, Eritrea, Angola, Mauritania, Cameroon, Egypt, and Jamaica.

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“Most of these individuals had already been granted protection by a US immigration judge, including protection linked to the risk of persecution or torture in their home countries, and were nonetheless expelled to Equatorial Guinea,” said lawyer Meredyth Yoon of Asian Americans Advancing Justice-Atlanta.

Ill-Treatment and Denial of Medical Care

According to testimonies gathered by the undersigned organizations, several deportees have been beaten, threatened at gunpoint, arbitrarily detained, and subjected to other forms of intimidation, in circumstances marked by the absence of procedural guarantees, effective legal assistance, or adequate medical care.

“The conditions our clients are being subjected to in Malabo are inhumane and demand immediate attention,” said Beatrice Njeri of the Global Strategic Litigation Council. “They are facing arbitrary and indefinite detention, sexual harassment, and insufficient access to legal assistance and critical medical services. Several arrived with a limited supply of medication for chronic, life-threatening conditions, which ran out following their transfer, and authorities failed to provide the necessary medication and access to medical care.”

Several deportees have also suffered repeated episodes of malaria, and have reportedly been transferred to a local hospital only in emergencies, receiving medical treatment sporadically at best. Many of those still held have been in Malabo since January 2026; at least one individual has been in the country since November 2025.

Lawyers Representing Deportees Face Threats and Obstruction

The organizations have also documented a pattern of intimidation directed at lawyers seeking to visit and represent the detained individuals. This obstruction raises serious concerns about detainees’ access to legal counsel and due process.

The law requires that anyone should receive legal assistance of their choice and actions limiting access to legal counsel by any individual in Malabo is against all the international conventions, particularly the International Covenant on Civil and Political Rights. The lawyers fear access to detainees will remain dependent on the discretion of individual guards on duty and will continue to be subject to undue delays or blocked altogether.

“It is particularly alarming that lawyers attempting to do their jobs to protect the rule of law are themselves being threatened,” said Tutu Alicante of EG Justice. “A government that assures the United States it will treat transferred individuals humanely cannot simultaneously intimidate the lawyers trying to ensure that promise is kept.”

Equatorial Guinea’s International Commitments

In a Note Verbale dated October 2, 2025, the Government of Equatorial Guinea assured the United States that third-country nationals transferred to its territory would be treated consistently with its international obligations, including the 1951 Refugee Convention, its 1967 Protocol, the OAU Refugee Convention, and the Convention against Torture. The government expressly undertook to ensure that transferred individuals would not be subjected to persecution or torture, either in Equatorial Guinea or in any third country to which they might subsequently be moved.

In June 2026, the signatories of this statement Asian Americans Advancing Justice-Atlanta, EG Justice, the Global Strategic Litigation Council, the Institute for Human Rights and Development in Africa, and the Pan African Lawyers Union filed a complaint with the African Commission on Human and Peoples’ Rights requesting provisional measures to prevent the repatriation or transfer of these individuals to third countries, and demanding effective protection for as long as they remain under Equatorial Guinea’s jurisdiction.

The UN bodies such as UNHCR, IOM or OHCHR are aware of the situation and independent UN experts urging Equatorial Guinea to respect its international obligations and suspend any further transfers of individuals at risk.

A Contradictory and Troubling Arrangement

These concerns are compounded by the terms of the underlying US-Equatorial Guinea migration arrangement. Equatorial Guinea has reportedly received approximately US$7.5 million in support tied to these transfers, and the United States has extended favorable treatment to certain Equatoguinean officials despite the country’s long record of documented human rights violations. At the same time, Equatoguinean citizens continue to face severe restrictions on access to US territory, an asymmetry the signatory organizations consider indefensible.

Recommendations

The undersigned organizations urge the Government of Equatorial Guinea to:

1. Return all affected individuals to the United States, or release them from detention, pending resolution of their asylum claims or appeals;
2. Immediately end all ill-treatment, threats, or intimidation against detained individuals, in line with its international obligations;
3. Ensure prompt, unobstructed access for legal counsel to all detainees, and formally guarantee that lawyers representing them can carry out their work free from threats or reprisal;
4. Provide adequate, continuous medical care, including uninterrupted access to medication for chronic conditions;
5. Strictly uphold the principle of non-refoulement, and refrain from transferring any individual to a country where they may face persecution, torture, or other serious human rights violations.

We also call on all African Union Member States, the African Commission on Human and Peoples’ Rights, and relevant regional bodies to urgently engage with the Government of Equatorial Guinea, publicly and privately, to ensure the protection of the rights, safety, and dignity of the affected individuals. AU Member States should use all available diplomatic, legal, and human rights mechanisms to prevent unlawful transfers, ensure compliance with international and regional human rights obligations, and demonstrate Africa’s collective commitment to the protection of refugees, asylum seekers, and all persons at risk of serious human rights abuses.

The undersigned organizations further call on the United States government to take responsibility for individuals transferred under these arrangements, and to ensure that no migration policy is implemented at the expense of fundamental rights, international refugee protections, or the absolute prohibition on torture and ill-treatment.

Media Contacts:
Asian Americans Advancing Justice-Atlanta — media@advancingjustice-atlanta.org
Institute for Human Rights and Development in Africa — mjallow@ihrda.org (+34 608 919 919)
EG Justice — tutu@egjustice.org (+1 (615) 479-0207)
Pan African Lawyers Union — mhoza@lawyersofafrica.org
Global Strategic Litigation Council — beatrice@global-council.org (+254 720 230 206)

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Address:

Institute for Human Rights and Development in Africa (IHRDA)
949 Brusubi Layout, AU Summit Highway,
P.O. Box 1896 Banjul, The Gambia.

Contact us:

Tel: +220 44 10 413/4
Cell: +220 87 77 51 200
Email: ihrda@ihrda.org

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